

CV-25-009148 PEREZ, HENRY ERNEST vs VOLKSWAGEN GROUP OF AMERICA INC – Defendant’s Motion to Compel Deposition of Henry Ernest Perez and Request for Monetary Sanctions in the Amount of \$2,430.00 – CONTINUED to September 9, 2026, at 8:30 am in Department 24.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court has reviewed the moving papers, opposition, reply, and supporting declarations. The Court notes that Plaintiff does not dispute Defendant's entitlement to take Plaintiff's deposition and expressly acknowledges that Defendant is entitled to that discovery. The parties' dispute instead appears to center on deposition scheduling, the sufficiency of the parties' meet-and-confer efforts, and whether sanctions are warranted. Defendant contends Plaintiff has failed to provide any available dates despite multiple requests over several months. Plaintiff contends he timely objected to two unilaterally noticed depositions, invited further meet-and-confer efforts, and that defense counsel never attempted a telephonic conference before seeking Court intervention. The Court finds additional meet-and-confer efforts are appropriate before ruling on the motion and sanctions request. Accordingly: 1. The hearing on Defendant's Motion to Compel Deposition and Request for Monetary Sanctions is CONTINUED to September 9, 2026, at 8:30 am in Department 24. 2. No later than ten days from the date of this hearing, counsel shall meet and confer in good faith regarding the scheduling of Plaintiff's deposition. The meet-and-confer shall occur by videoconference or in person. 3. During the meet-and-confer process, Plaintiff shall provide specific dates on which he is available for deposition, and counsel shall make reasonable efforts to select a mutually agreeable deposition date. 4. If the parties are able to schedule and complete Plaintiff's deposition before the continued hearing date, Defendant shall promptly notify the Court whether the motion is withdrawn or whether any issues remain for determination. 5. If any disputes remain, the parties shall file supplemental declarations, not exceeding five pages each, no later than five court days before the continued hearing. The supplemental declarations shall address: (a) the meet-and-confer efforts undertaken after issuance of this order; (b) whether a deposition date was provided and/or selected; (c) whether the deposition has occurred; and (d) the parties' respective positions regarding monetary sanctions. The Court reserves ruling on both the motion to compel and Defendant's request for monetary sanctions pending completion of the additional meet-and-confer process.

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